

24STCV19979 24STCV19979

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-07-10

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Case Number: 24STCV19979 Hearing Date: July 10, 2026 Dept: 529

YOLANDA

FIGUEROA vs GLORIA CHAVEZ

MOTION FOR TERMINATING SANCTIONS, IN THE ALTERNATIVE, ISSUE,
EVIDENCE AND MONETARY SANCTIONS AGAINST DEFENDANT FOR FAILURE TO COMPLY WITH
COURT ORDER COMPELLING DISCOVERY RESPONSES

Date

of Hearing: July

10, 2026 Trial

Date: August

31, 2026

Department: 529 Case No.: 24STCV19979

Moving Party: Plaintiff Yolanda Figueora

Responding Party: Defendant

Gloria Chavez

BACKGROUND

On August 8, 2024, Plaintiff Yolanda

Figueroa filed a complaint against Defendant Gloria Chavez for negligence, breach of contract, trespass, breach of the implied warranty of habitability, breach of the covenant of quiet enjoyment, private nuisance, intentional infliction of emotional distress, constructive eviction, statutory violations and premises liability. Plaintiff leased Subject Property from Defendant.

Plaintiff alleges at the time she rented the Subject Property and thereafter, the Subject Property was unfit for human occupation and substantially failed to comply with applicable Civil, Health and Safety and Building Codes.

Default was entered against Defendant on February 26, 2025. The default was vacated on July 10, 2025.

[TENTATIVE]

RULING

Plaintiff's Motion for Terminating Sanctions, in the alternative, Issue, Evidence and Monetary Sanctions against Defendant for Failure to Comply with Court Order Compelling Discovery Responses is CONTINUED.

DISCUSSION

Plaintiff Yolanda Figueroa moves this court for an order for terminating sanctions against Defendant pursuant to Code of Civil Procedure sections 2023.010 and 2023.030; or in the alternative for evidence and monetary sanctions against Defendant Gloria Chavez for failure to comply with court order compelling further discovery responses. Plaintiff makes the motion on the grounds that Defendant failed to comply with this court's prior order compelling further discovery responses; failed to provide code-compliant verified responses to Form Interrogatories, Set One and Requests for Production, Set One; engaged in persistent misuse of the discovery process; failed to appear in the litigation; refused to participate in court ordered mediation, and caused Plaintiff substantial prejudice and delay.

Where a party fails to obey an order compelling answers to discovery, "the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction." (CCP §§ 2030.290(c), 2023.010(c); R.S. Creative, Inc. v. Creative Cotton, Ltd. (1999) 75 Cal.App.4th 486, 495.) The Court may impose a terminating sanction against anyone engaging in conduct that is a misuse of the discovery process. (CCP § 2023.030(d).) Misuse of the discovery process includes failure to respond to an authorized method of discovery or disobeying a court order to provide discovery. (CCP § 2023.010(d), (g).) A terminating sanction may be imposed by an order dismissing part or all

of the action. (CCP § 2023.030(d)(3).)

The court should consider the totality of the circumstances, including conduct of the party to determine if the actions were willful, the deterrent to the propounding party, and the number of formal and informal attempts to obtain discovery. (Lang v. Hochman (2000) 77 Cal.App.4th 1225, 1246.) If a lesser sanction fails to curb abuse, a greater sanction is warranted. (Van Sickle v. Gilbert (2011) 196 Cal.App.4th 1495, 1516.) However, “the unsuccessful imposition of a lesser sanction is not an absolute prerequisite to the utilization of the ultimate sanction.” (Deyo v. Killbourne (1978) 84 Cal.App.3d 771, 787.) Terminating sanctions should not be ordered lightly, but are justified where a violation is willful, preceded by a history of abuse, and there is evidence that less severe sanctions would not produce compliance with the discovery rules. (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 992.)

Plaintiff argues terminating sanctions are warranted as Defendant ignored the Court’s order for approximately nine months while providing no reasonable explanation. Defendant never sought a protective order, moved for a stay, sought appointment of a guardian ad litem, or requested extensions. Plaintiff contends this refusal to participate has substantially prejudiced Plaintiff’s ability to prepare for trial, conduct depositions, evaluate defenses or prosecute the action efficiently. In particular, Defendant was ordered to provide further discovery responses within 30 days of the court’s November 21, 2025 Order. In December, Defendant’s daughter contacted Plaintiff’s counsel asking for an extension as Defendant was ill and could not provide further discovery responses. Plaintiff counsel volunteered an extension for ninety days to the second day of March 2026. No responses were ever provided by Defendant. Plaintiff counsel then unilaterally granted an additional one-week extension on 27 March 2026 to 3 April 2026. No responses have been provided. Furthermore, Defendant has not participated in any of the proceedings, whether formal or informal in this matter.

In opposition, Defendant argues she suffers from progressive dementia and severe cognitive impairment. Accordingly, Defendant’s inability to provide additional discovery responses is the result of genuine medical incapacity rather than willful disobedience or misuse of the discovery process. Defendant further asserts Defendant’s medical condition has

continued to deteriorate.

The court continues the motion for terminating sanctions. Defendant must provide medical records for in camera review substantiating her medical condition within three weeks. The court will set the in camera inspection. In addition, defendant must have a guardian ad litem appointed to make decisions in this case and to respond to discovery and other deadlines in this case. The application for appointment of a guardian ad litem must be submitted within three weeks, and counsel must be secured to represent the guardian ad litem once appointed. Failure to comply with these orders may result in the motion for terminating sanctions being granted.

Accordingly, Plaintiff's Motion for Terminating Sanctions, in the alternative, Issue, Evidence and Monetary Sanctions against Defendant for Failure to Comply with Court Order Compelling Discovery Responses is CONTINUED.